EUROPEAN COURT OF HUMAN RIGHTS
COUR EUROPÉENNE DES DROITS DE L'HOMME

Information Note on the Court's case-law 68

October 2004

Vatan v. Russia - 47978/99

Judgment 7.10.2004 [Section III]

Article 34

Victim

Political party unable to claim to be a victim of a court order suspending the activities of a purported regional branch: *preliminary objection allowed*

Facts: Vatan is a political party which carries out its activities across the territory of the Russian Federation with the aim of protecting and advancing the rights and freedoms of citizens of Tartar origin. A Regional Organisation of the party was created in the Ulyanovsk region, which Vatan claimed was a branch of the main party. In 1997, the Regional Organisation issued harsh statements against, *inter alia*, the regional administration and local governors, connected to the planned celebrations for the 350th anniversary of the founding of the city of Simbirsk, which was referred to as the date of a "colonisation". The announcement also contained calls in favour of increased teaching of the national language and the preservation of Islamic values. In May 1998, the Regional Organisation was authorised to hold a ceremony in places of worship and cemeteries, but it nevertheless held a memorial ceremony in the city centre. Some days later, the prosecutor applied for a suspension of the Regional Organisation's activities. The Regional Court examined the prosecutor's claim and found that some of the statements which the Regional Organisation had made in 1997 were incompatible with the Constitution and that the 1998 memorial ceremony had breached the mayor's permit. It concluded that the Regional Organisation's activities had violated the Federal Law on Public Associations and thus suspended its activities for six months. The Regional Organisation was *ipso jure* prohibited from holding meetings, demonstrations and other public actions or taking part in elections. The Regional Organisation appealed to the Supreme Court, which upheld the Regional Court's decision. The Regional Organisation was subsequently dissolved for failure to bring its Charter into compliance with new legislation.

Law: The Government's preliminary objection (victim status): The Court found that Vatan and the Regional Organisation could not be regarded as one political party which would permit considering them as a single non-governmental organisation for the purposes of lodging an application under Article 34. This conclusion was supported by the fact that there was only one implicit reference to Vatan in the Regional Organisation's constituent documents, and nothing prevented it from pursuing political goals other than those approved by Vatan. As to whether Vatan could claim to be a victim of the suspension applied to the Regional Organisation, it was noted that Vatan had only been indirectly affected by such a measure (in the sense of not having been able to rely on the Regional Organisation to convey its political ideas during six months). Referring to the *Agrotexim v. Greece* judgment (Series A no. 330-A), the Court concluded that there were no exceptional circumstances which justified accepting the application, in particular considering that the Regional Organisation could have lodged an application itself as direct victim. Moreover, as Vatan had never pursued any domestic

proceedings in its own name, the application would have in any event been inadmissible for non-exhaustion. Hence, the Government's preliminary objection was well-founded and Vatan could not claim to be a victim.

Conclusion: incompatible *ratione personae* (unanimously).

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